

CEMEX Lyons

Dowe Flats Mining

Extension Discussion

June 9, 2022



Agenda

- About Good Neighbors of Lyons
- About CEMEX Lyons
- The Current Situation
- The Proposal
- Questions Raised
- What Can You Do?
- Q&A

About Good Neighbors of Lyons

About CEMEX Lyons

Who is CEMEX?



Mexican multinational materials company.

Manufactures and distributes cement, ready-mix concrete and aggregates in 50 countries

Global 2000 (#1,178)

\$13 Billion in Annual Revenues

\$27 Billion in Assets

What does CEMEX Lyons do?

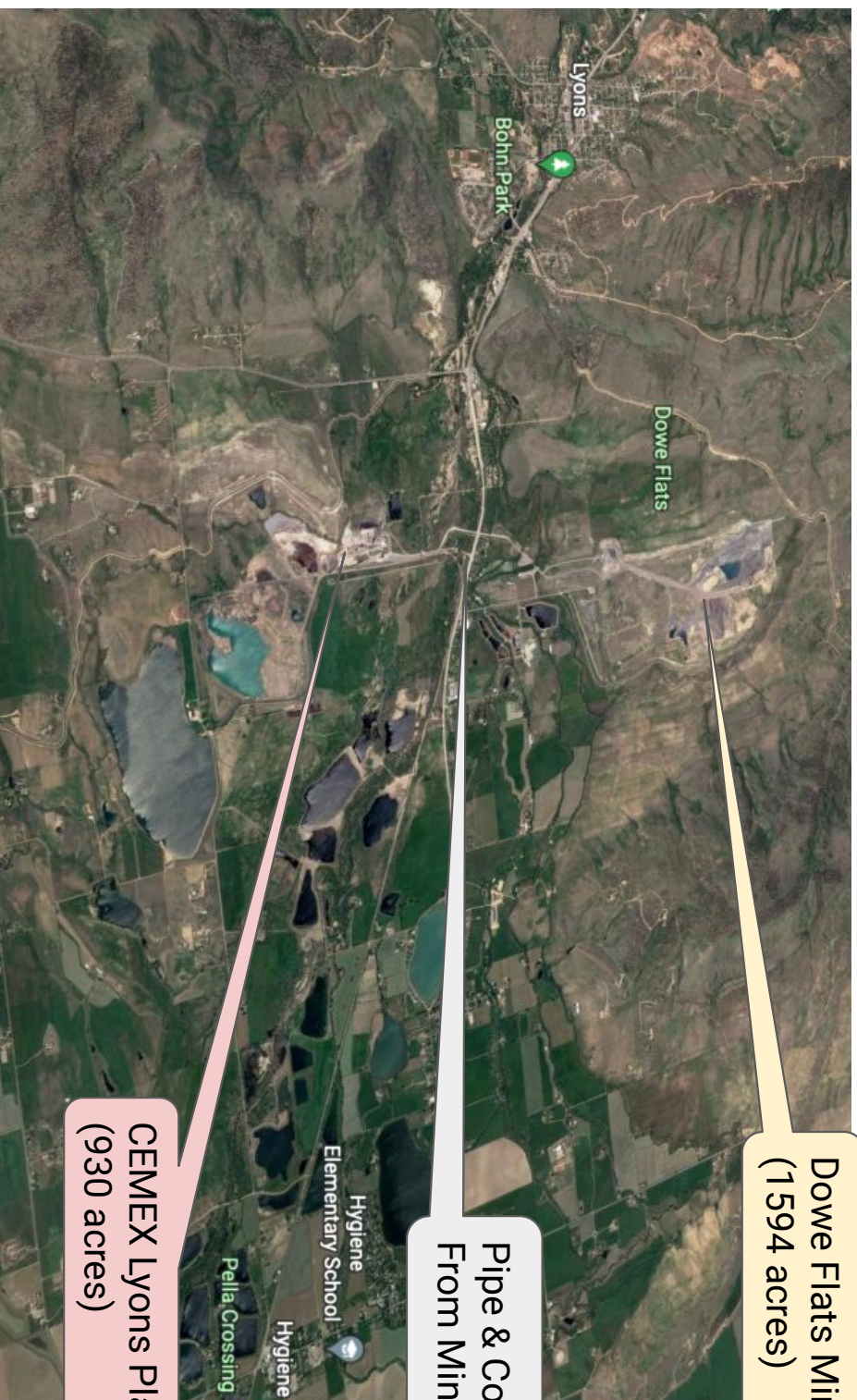


Produces **cement**, the main basic ingredient of ready-mix concrete

Cement is produced largely from combining **limestone** and **silica** from local mines & quarries.

To combine the ingredients, **the plant burns coal**, and heats a kiln to **>2300 deg F**

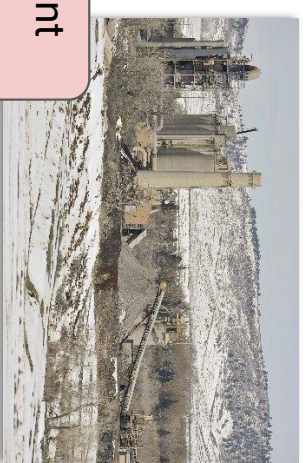
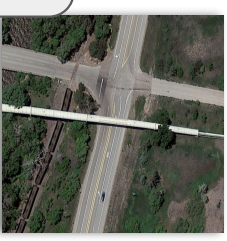
Where is CEMEX Lyons?



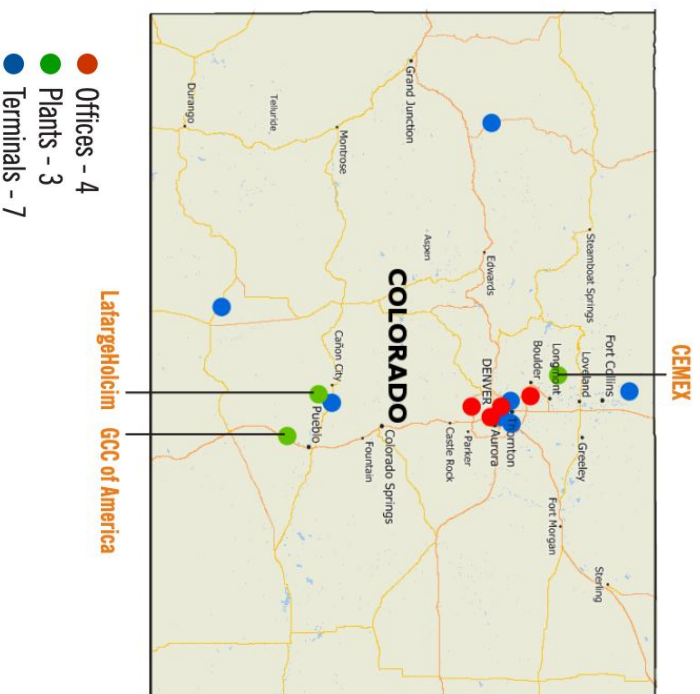
Dowe Flats Mine
(1594 acres)

Pipe & Conveyor
From Mine to Plant

CEMEX Lyons Plant
(930 acres)



What does the Colorado cement market look like?



- **3 cement plants**
- **7 cement delivery terminals**
- **2.6 million tons** of cement produced
- **2.1 million tons** of cement consumed
- Net exporter of **500,000 tons** of cement
- **327 employees** (2015)

Source: Cement.org report on Colorado Cement Industry (2016)

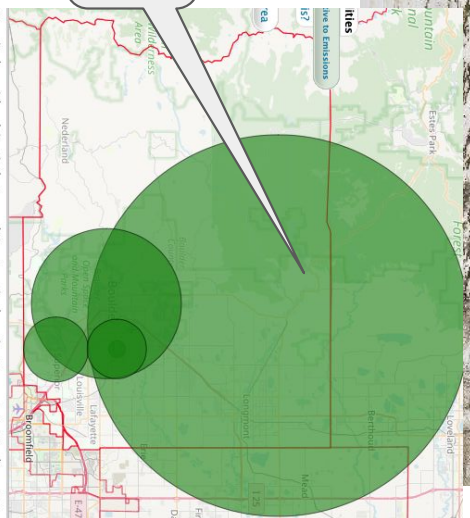
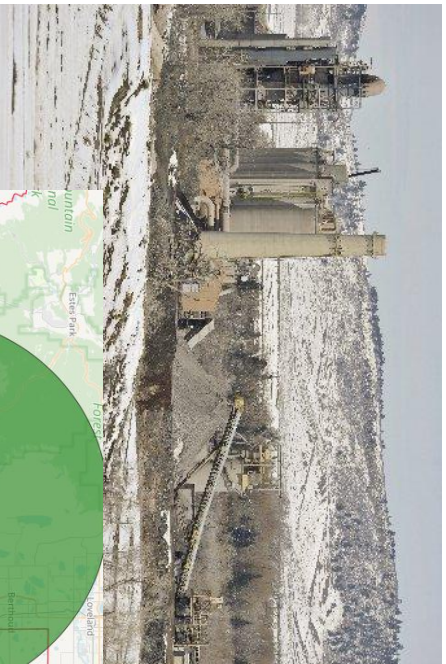
When did CEMEX Lyons begin operations?



CEMEX Lyons Plant constructed in **1969** by Martin Marietta and permit granted by State of Colorado. Adjacent quarries were mined for **decades** until exhausted.

Dove Flats Mine began mining operations **September 30, 1997** with a **25 year permit** granted by Boulder County, ending **September 30, 2022**.

What is the CEMEX Lyons carbon footprint?



CEMEX Lyons
Plant

Image Source: Boulder County - EPA Facility Level Emissions
<https://ghgdata.epa.gov/ghgo/main.do>

- EPA: #1 Greenhouse Gas Emitter in Boulder County**
- Equivalent to **~30,000** Boulder County residents
 - **~7.3%** of Boulder County Greenhouse Gas Emissions (GHG)
 - Emits **357,101 tons of CO₂ annually**; the #2 polluter in Boulder County emits only 55,000 tons of CO₂ annually
 - Over next 30 years, will emit **10 million tons of CO₂**

What regulatory actions have been taken?



United States
Environmental Protection
Agency



Environmental Topics ▾

Enforcement Home

Enforcement Basics

Air Enforcement

Water Enforcement

Waste, Chemical and
Cleanup Enforcement

Criminal Enforcement

Enforcement at Federal
Facilities

Data and Results

Policy, Guidance and
Publications

Laws & Regulations ▾

Report a Violation ▾

About EPA ▾

CONTACT US

Enforcement

CEMEX Lyons Plant Settlement

(Washington, DC - April 19, 2013) The U.S. Department of Justice (DOJ) and the U.S. Environmental Protection Agency (EPA) announced today that CEMEX, Inc., the owner and operator of a Portland cement manufacturing facility in Lyons, Colo., has agreed to operate advanced pollution controls on its kiln and pay a \$1 million civil penalty to resolve alleged violations of the Clean Air Act (CAA).

On this page:

- [Overview of Company](#)
- [Violations](#)
- [Injunctive Relief](#)
- [Pollutant Reductions](#)
- [Health Effects and Environmental Benefits](#)
- [Civil Penalty](#)
- [Comment Period](#)
- [Contact](#)

Cemex Lyons
Company
Settlement
Resources

- [Press Release](#)
- [Consent Decree](#)

Overview of Company

\$1M settlement with DOJ and EPA for Nitrogen Oxide (NOx) emissions.

Source: <https://www.epa.gov/enforcement/cemex-lyons-plant-settlement>

The Current Situation

Dowe Flats Permit Expiring



Mining Permit Expiring
September 30, 2022 and
reclamation expected to be
completed in **2024**.



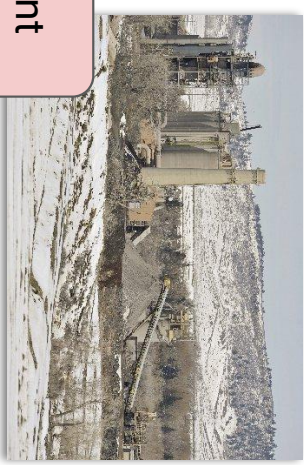
CEMEX Plant Won't Have Local Raw Materials



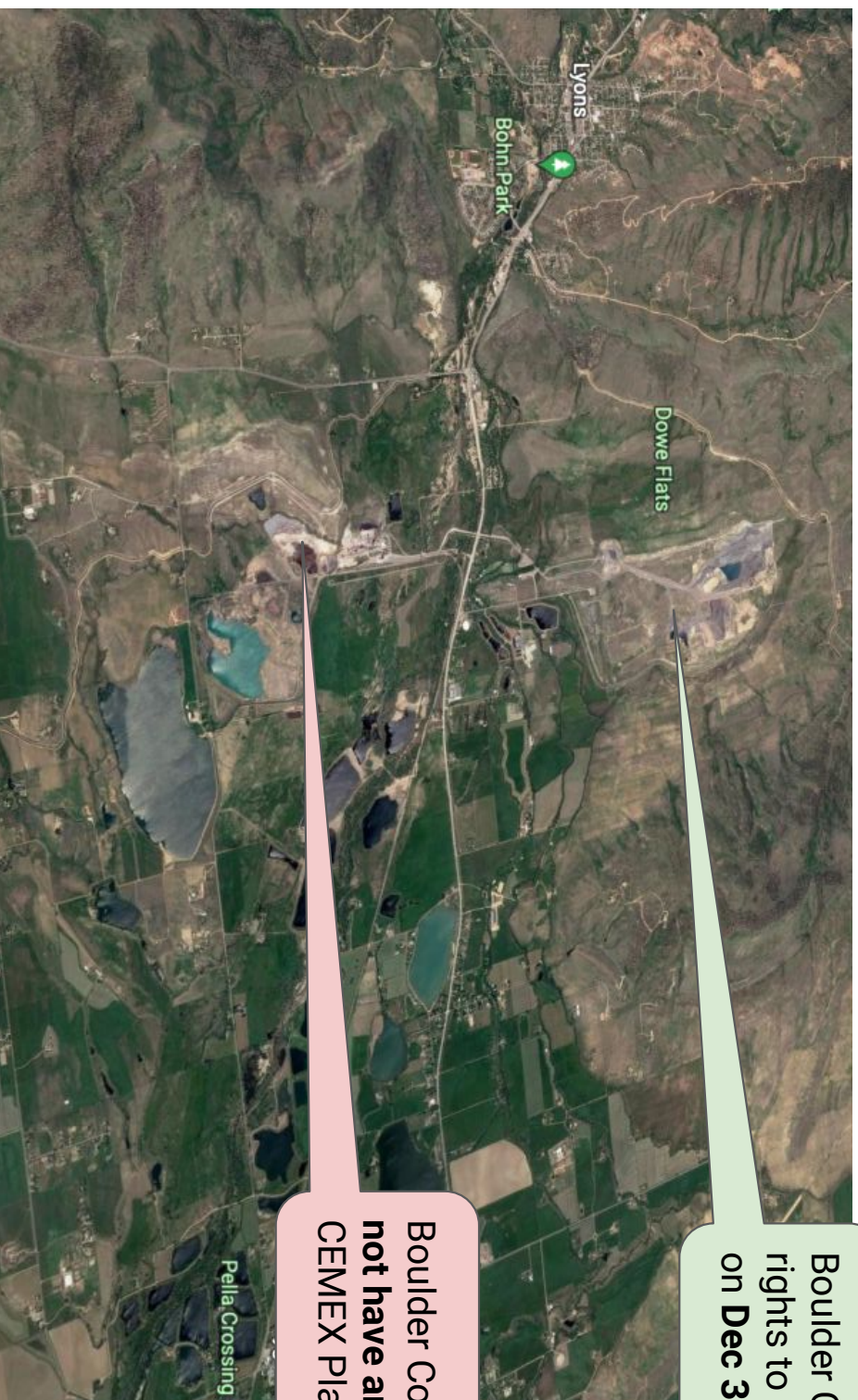
Dowe Flats Mine

Pipe Conveyor
From Mine to Plant

CEMEX Lyons Plant



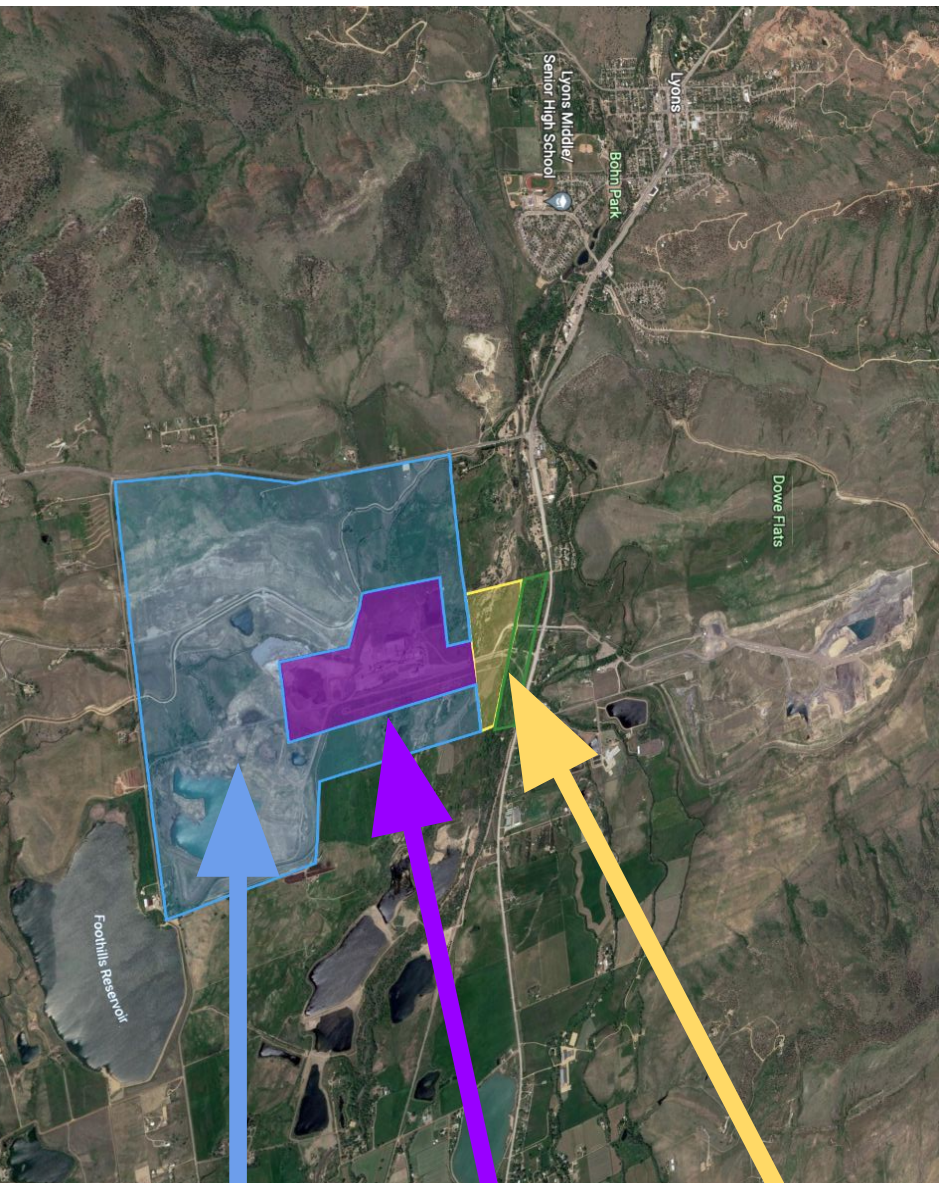
Boulder County Open Space Purchase Rights



Boulder County Open Space has rights to buy 100% of Dowe Flats on **Dec 31, 2024**

Boulder County Open Space **does not have any purchase rights** to the CEMEX Plant parcel

Land Use Agreement between Lyons & Boulder County (IGA)



Municipal Facilities Area (~73 ac)

- Lyons Planning Area; Annexable
- No Boulder County Purchases/Easements w/o Lyons consent
- Intended for Green Tech; Solar/Electric, Etc

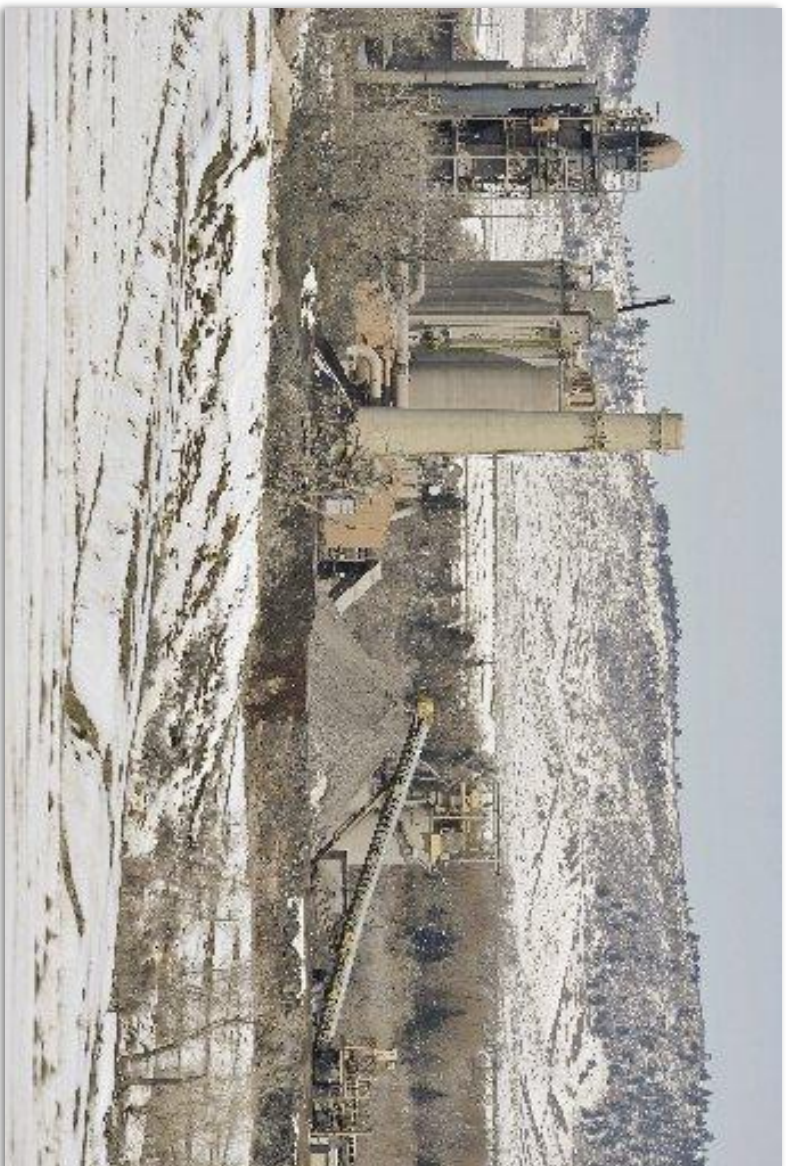
Primary Planning Area - e.g. CEMEX Plant (~40 ac)

- Lyons Planning Area; Annexable
- Intended for Urban Development & Town Expansion
- Some of it intended to be negotiated in 2022

Rural Preservation Area (~830 ac)

- Boulder County Jurisdiction
- **Can be acquired** by County for Open Space & Conservation Easements
- Zoned Agricultural: 35 acre, 1-unit residential

CEMEX indicates possible “Indefinite Operation”

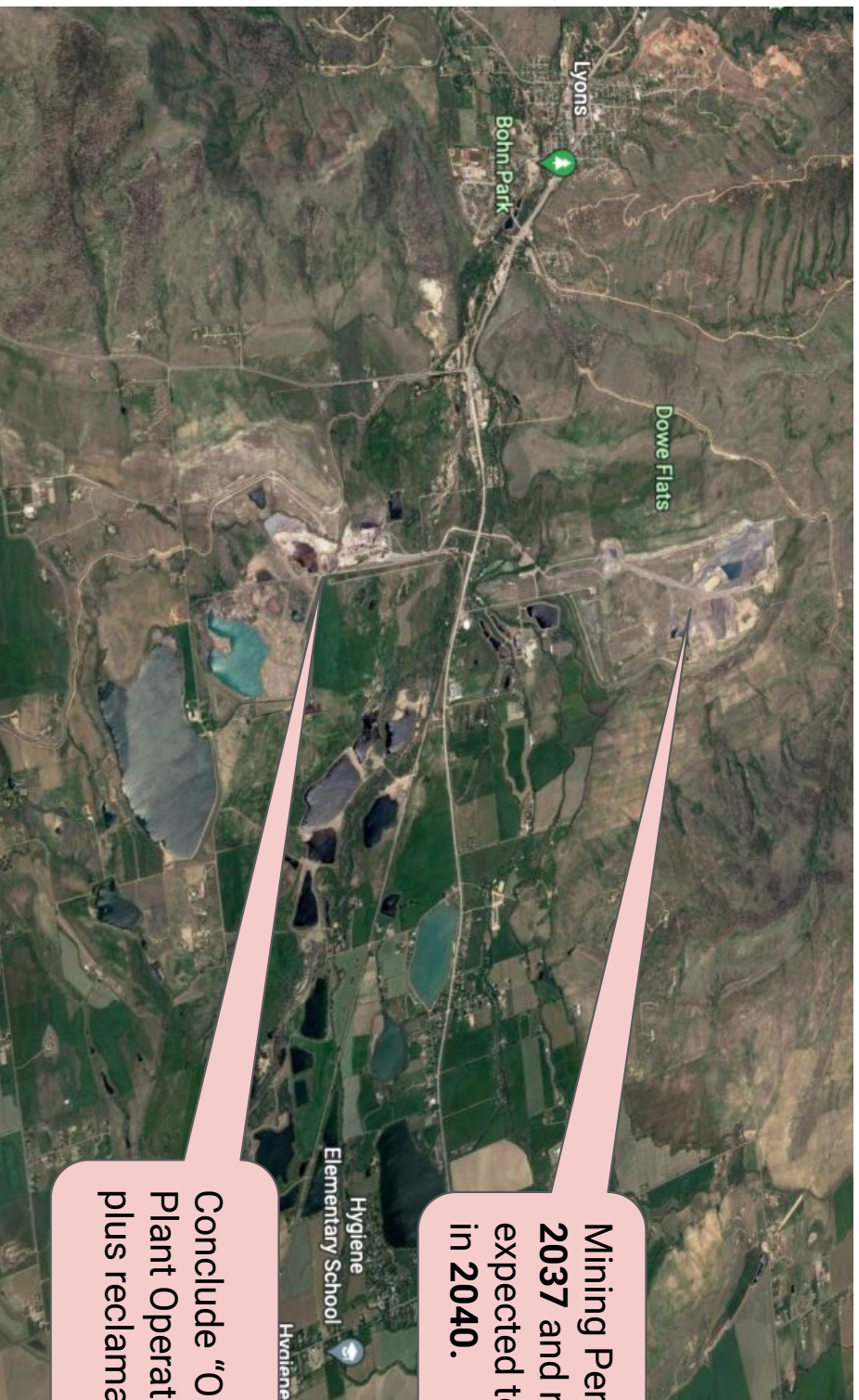


In face of Dove Flats closing, CEMEX has indicated they have contemplated “**continuing to operate the cement plant indefinitely**”

To accomplish this, it would require shipping in **hundreds of thousands of tons** of limestone and silica from distant mines and quarries each year.

The Proposal

CEMEX Proposes to Extend Dove Flats Mining Another 15 Years



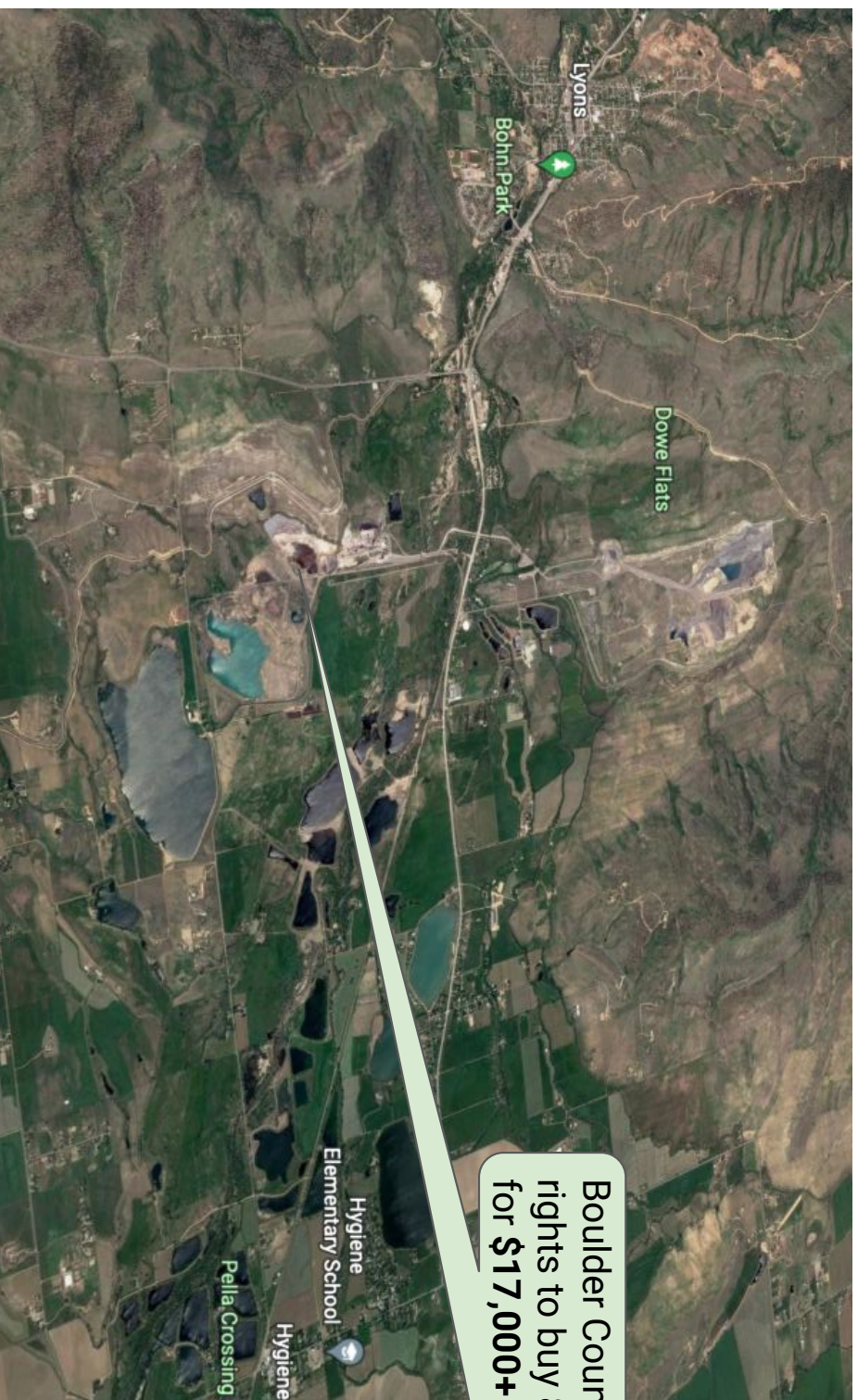
Mining Permit Extended to **2037** and reclamation expected to be completed in **2040**.

Conclude "Ongoing Cement Plant Operations" by **2037** plus reclamation

In Exchange >\$15 Million to Boulder County Open Space

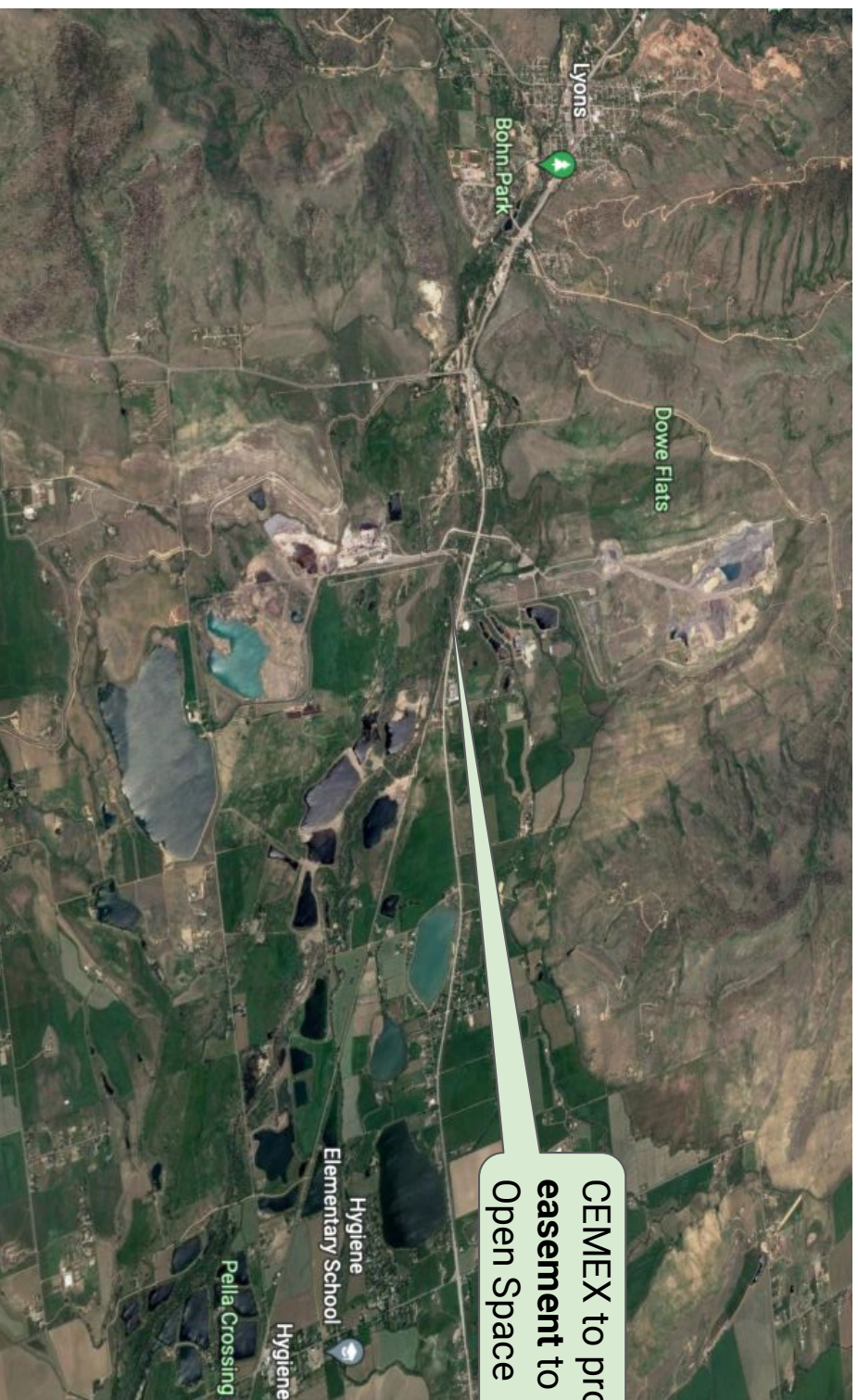


Plus...Additional Purchase Rights for Boulder County



Boulder County Open Space receives rights to buy **830 acres** of Plant parcel for **\$17,000+ per acre (~\$15M)**

Permission to build a trail along St. Vrain River



**CEMEX to provide St. Vrain Trail
easement to Boulder County Parks &
Open Space**

Questions this Raises...

**Can CEMEX really operate indefinitely
without a nearby mine?**

Why would CEMEX pay the equivalent of \$15 million to operate for the next 15 years if they can really operate indefinitely without a nearby mine?

We seem to be presented with a **binary choice**
between **15 more years** and “**indefinite**”

...but is there **another** option?

How does this impact the **current land use agreement (IGA)** between the Town of Lyons and Boulder County regarding the CEMEX property?

In lieu of agreeing to the 15-year proposal, could the Town of Lyons negotiate with Boulder County and CEMEX a **different exit timeline** and immediately move to negotiate a new land use agreement outlining the future of Lyons on the former CEMEX site?

In the current proposal the language states that CEMEX will “conclude ongoing cement plant operations,” but what does that **actually mean**?

- Could they **repurpose the plant** for a different industrial use?
- What’s going to happen to the plant? Is there an **actual plan**?
- Does CEMEX have to sell the plant once operations end?

**If the cement plant goes away, could
we still get cement?**

How do we reconcile this proposal with
Boulder County's 2030 Paris Climate
Goal and Greenhouse Gas Reduction
Commitments?

**What are the impacts on public health
and safety?**

What are the impacts on air quality in the local communities?

What are the impacts on wildlife?

**What are the impacts to Lyons as the
“Gateway to the Rockies” and first
impressions for travelers on the way to
Estes & Rocky Mountain National Park?**

**What are the impacts to Eastern
Corridor and its residents?**

**What is the impact to the beauty of the
St Vrain Valley?**

**What are the impacts to Town of Lyons
tax revenue and economic
development?**

How do we know there won't be yet
another extension in 15 years?

What are the environmental impacts of continuing to operate a 60 year old plant?

**Why is the timeline for public comment
so fast?**

....Lots of Questions

... Few Answers....

**We Need More Time to Get
Answers to these Questions!**

What Can You Do?

Before Friday at 5PM

- Email Boulder County: planner@bouldercounty.org
Subject Line: SU-22-0003
CC: commissioners@bouldercounty.org
- Email Town of Lyons: dvasquez@townoflyons.com
- Call Boulder County Planning: 303-441-3930

“Delay Boulder County Planning Commission review scheduled for **July 20th**, we need more time to answer the questions posed today.”

Add any personal details/experiences that are important to you

...then continue to spread the word (email, social)

If you're inclined...

**Visit Save our St. Vrain Valley and make
a Donation**

<https://sosvv.wordpress.com/>

Q&A

Thank You